8. Taylor C. Sherman, ‘State Practice, Nationalist Politics and the Hunger Strikes of the Lahore Conspiracy Case Prisoners, 1929–39’, *Cultural and Social History*, 5, 4 (2008), pp. 497–508, p. 498, (Available at https://www.tandfonline.com/doi/abs/10.2752/147800408X341686).
9. Ibid.
10. Ibid., p. 500.
11. Chris Moffatt, ‘Experiment in Political Truth’, *Postcolonial Studies*, 16, 2 (2013), pp. 185–201, p. 185.
12. Ibid., p. 186.
13. Shubhankar Dam, *Presidential Legislation in India: The Law and Practice of Ordinances* (Cambridge University Press, 2014), p. 5.
14. This was a body consisting of six to twelve non-official members (under S. 10), but the Council’s legislative powers were greatly limited because in many cases the governor-general’s prior sanction was required (under S. 19).
15. Shubhankar Dam, *Presidential Legislation in India: The Law and Practice of Ordinances* (Cambridge University Press, 2014), pp. 38–39.
16. Indian Councils Act 1861, S. 23.
17. Shubhankar Dam, *Presidential Legislation in India: The Law and Practice of Ordinances* (Cambridge University Press, 2014), p. 44.
18. Anon, ‘Public Safety Ordinance: Preventive Purpose’, *The Strait Times*, 1 May 1929.
19. Shubhankar Dam, *Presidential Legislation in India: The Law and Practice of Ordinances* (Cambridge University Press, 2014), pp. 44–45.
20. Ibid., p. 46.
21. Ibid., p. 46, quoting from the statement of Lord Irwin appended to the Lahore Conspiracy Case Ordinance, 1 May 1930, Shimla.
22. (1931) 55 Ind. App. 169.
23. Ibid., 172. Dam writes, ‘This exclusionary rule quickly became standard reasoning, see e.g., *King-Emperor v. Benoari Lal Sharma And Others* (1945) 72 Ind. App. 57; *Hubli Electricity Co. Ltd v. Province of Bombay L.R.* (1948) 76 Ind. App. 57; *Lakhi Narayna Das v. The Province of Bihar* [1949] F.C.R 693. But even so, we now know from *Bancoult* that this is wrong reasoning and Bhagat Singh’s case is merely the precursor to all these others, which is why it should be revisited in the courts again.
24. Shubhankar Dam, *Presidential Legislation in India: The Law and Practice of Ordinances* (Cambridge University Press, 2014), p. 47.